



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

DOT-E 12540
(FOURTH REVISION)

400 Seventh St., S.W.
Washington, D.C. 20590

SEP 30 2002

EXPIRATION DATE: August 31, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. **GRANTEE:** Air Products and Chemicals, Inc.
Allentown, PA
2. **PURPOSE AND LIMITATION:**
 - a. This exemption authorizes the transportation in commerce of hydrogen fluoride, anhydrous in 12 DOT Specification 51 portable tanks which do not have the relieving capacity specified in § 173.315(i)(1)(i). This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR §§ 173.315(i)(1)(i) and 178.245-5(c) in that the 12 DOT Specification 51 portable tanks are fitted with pressure relief devices which provide a smaller relieving capacity than specified.
5. **BASIS:** This exemption is based on the applications of Air Products and Chemicals, Inc. dated August 1, 2002, submitted in accordance with § 107.109.
6. **HAZARDOUS MATERIALS (49 CFR § 172.101):**

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hydrogen fluoride, anhydrous	8	UN1052	I, Hazard Zone C

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are 12 skid-mounted DOT Specification 51 portable tanks manufactured by Arrow Tank and Engineering Company bearing manufacturer's serial numbers 33835 through 33842 and 33907 through 33910. The tank has a maximum allowable working pressure of 200 psig and a water capacity of 500 U.S. gallons. Additionally, each tank is fitted with one (1) - 3/4 inch diameter spring-loaded pressure relief valve-set at 210 psig outboard of and in series with a one (1) - 1/2 inch diameter rupture disc set at 220 psig. Total relief device capacity is 675 SCFM.

b. TESTING - Each tank must be requalified for use every five years in accordance with § 173.32 as prescribed for DOT Specification 51 portable tank.

c. OPERATIONAL CONTROLS -

(1) The portable tanks must be in dedicated Hydrogen fluoride, anhydrous service.

(2) The tanks must be shipped properly blocked and braced within an intermodal freight container.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - Each portable tank must be plainly and durably marked on both sides near the middle, in letters and numbers at least two inches high on contrasting background, "DOT-E 12540".

d. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

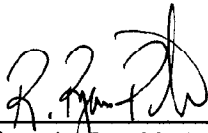
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel or motor vehicle.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

SEP 30 2002

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: CHH/sln